



CHAPTER xxxvi.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Rothesay Tramways. A.D. 1918.
—
[8th August 1918.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Rothesay Tramways (Amendment) Order Confirmation Act 1918. Short title.

A.D. 1918.

S C H E D U L E.

ROTHESAY TRAMWAYS (AMENDMENT).

*Provisional Order amending the Rothsay Tramways Orders
1880 to 1902.*

WHEREAS by the Rothsay Tramways Orders 1880 to 1902 the Rothsay Tramways Company Limited (hereinafter referred to as "the Company") were authorised to construct certain tramways partly in the royal burgh and parish of Rothsay and partly in the parish of North Bute all in the county of Bute and to work the same by mechanical power and the same have been constructed by the Company and opened for public traffic:

And whereas it is expedient that certain of the provisions of the said Orders as to tolls should be amended:

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the said Act the Secretary for Scotland orders as follows:—

Short title.

1. This Order may be cited as the Rothsay Tramways (Amendment) Order 1918 and the Rothsay Tramways Orders 1880 to 1902 and this Order may be referred to as the Rothsay Tramways Orders 1880 to 1918.

Alteration
of tolls.

2. Notwithstanding anything contained in any Act or Order relating to the Company's tramways the Company may demand and take the toll or charge of sixpence for every passenger travelling upon the said tramways from the terminus at Rothsay to the terminus at Ettrick Bay and may also demand and take for any less distance than two miles any tolls or charges not exceeding twopence Provided that the provisions contained in the Rothsay Tramways Orders 1880 to 1902 as to cheap fares for labouring classes shall continue to apply to the tramways of the Company notwithstanding anything herein contained.

[8 & 9 GEO. 5.] *Rothesay Tramways (Amendment)* [Ch. xxxvi.]
Order Confirmation Act, 1918.

3. Nothing in this Order contained shall exempt the Company or their tramways from the provisions of any general Act relating to tramways passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum fares rates or charges authorised by this Order.

A.D. 1918.

Provision as
to general
Tramway
Acts.

4. The Company shall deliver to the Registrar of Joint Stock Companies in Scotland a printed copy of the Act confirming this Order and he shall retain and register the same and if such copy is not so delivered within three months from the passing of the said Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily.

Copy of Act
to be regis-
tered.

There shall be paid to the Registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies (Consolidation) Act 1908 on registration of any document other than the memorandum or the abstract required to be filed with the Registrar by a receiver or manager or the statement required to be sent to the Registrar by the liquidator in a winding-up in England.

5. All costs charges and expenses of and preliminary and incident to the preparing for obtaining and passing of this Order and the confirming Act or otherwise in relation thereto shall be paid by the Company.

Costs of
Order.

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